



File No.: EXP202208939

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 6, 2022, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against ALTERNA OPERADOR INTEGRAL, S.L. with NIF B87075982 (hereinafter, the complained party or ALTERNA). The reasons for the complaint are as follows: The complainant states that they requested access to their personal data from the complained entity via email directed to the same and did not receive a response. Along with the notification, a request for access is provided, as well as a delivery certificate to the email address info@alternaonline.es, dated May 11, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party, so that it could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 6, 2022, as recorded in the acknowledgment of receipt in the file. On October 6, 2022, a response was received by this Agency indicating that although ALTERNA does not have data on the interested party, beyond those related to the request for the exercise of the right of access and the complaint filed, it sent the complainant a letter via certified email and postal mail on October 6, 2022, fulfilling their request for the exercise of the right of access.

It indicates that ALTERNA is not the entity responsible for processing their data, as THE TELECOM BOUTIQUE, S.L.U. (TTB) and XFERA MÓVILES, S.A.U. are the responsible parties for processing their data.

In the Privacy Policy on ALTERNA's website www.alternaonline.es, it informs of the possibility to exercise the rights recognized in the data protection regulations, enabling two email addresses: clientes@alternaonline.es and dpd@alternaonline.es.

However, the complainant did not use these enabled addresses, directing their request for the exercise of the right of access to the address info@alternaonline.es.

Nevertheless, ALTERNA, as soon as it became aware of the complainant's request for the exercise of the right of access, responded to it.

THIRD: On October 18, 2022, the Director of the Spanish Agency for Data Protection decided to archive the proceedings, considering that the complainant's request has been addressed in accordance with the personal data protection regulations, and that it is not necessary to urge the adoption of additional measures as the requested right has been attended to, thus proceeding with the archiving of the complaint filed.

FOURTH: On November 9, 2022, the complainant filed a discretionary appeal for reconsideration against the resolution issued in file EXP202208939, in which they express their disagreement with the contested resolution, requesting that the processing of the initial complaint filed on July 6, 2022, continue.

In this appeal, the complainant provides an email dated May 5, 2022, sent by ALTERNA, in which they are informed that the services they had contracted with the telecommunications network used by the complainant had become part of the complained party. The complainant also states that they received a promotional call and SMS from the complained party on May 12, 2022, requesting their banking details and informing them that they already had the remaining information and that they were acting as their telephone operator, among other details.

FIFTH: On July 13, 2023, the Director of the Spanish Agency for Data Protection upheld the appeal for

reconsideration filed by the complainant against the resolution issued on October 18, 2022, and agreed that the processing of the complaint filed should continue.

SIXTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

.-1-. Regarding the different intervening entities.

- ALTERNA: Company (dedicated to the sale and marketing of any type of energy) to which the complainant requested access to their personal data.

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- XFERA: Mobile phone service with which the claimant signed the contract.

- TTB: Authorized marketer of XFERA for the aforementioned service, which will provide services such as billing and collection of invoices related to electronic communications services and first-level customer service. TTB, under the brand “Alterna,” is the entity that initiates contact with the claimant to communicate that the contracted service would be directly managed by TTB due to the breach of contractual commitments by its previous operator (ANNA) with TTB.

- ANNA: INTERCONNECTAMOS TELECOM S.L. (ANNA TELECOM): acts on behalf of TTB for billing, collection, and commercial management, including first-level customer service. TTB indicates that ANNA has breached its contractual commitments, and therefore the service is terminated. ALTERNA and TTB are two independent companies with differentiated corporate purposes, belonging to the business group GLOBAL DOMINION ACCESS S.A., which also includes the company BUTIK TELCO. ALTERNA states that it has granted TTB the use of its trademark.

.-2-. Regarding evidence provided by the claimant and collected from the alternaonline website.

.-2.1-. Regarding the unsatisfied right of access exercised by the claimant

The claimant sent their request to exercise the right of access to the email address info@alternaonline.es. This request was not answered within the legally established timeframe; instead, ALTERNA sent its response to the claimant after receiving the information request and transfer of the complaint from the AEPD. In this response to the exercise of the right of access, ALTERNA indicates:

“(i) We have obtained your data through the request for the exercise of the right of access made by you, as well as from the complaint filed by you with the Agency.

(ii) The processed data are identifying and contact data. Specifically, the following:

- Name and surname: A.A.A.

- DNI: ***NIF.1

- Address: ***DIRECCION.1

- Phone: ***TELÉFONO.1

- Email: ***EMAIL.1

(iii) Your data is processed to respond to your request.

[...]

On the other hand, it is of interest to this party to inform you that the entity responsible for processing your data related to the telecommunications service is NOT ALTERNA OPERADOR INTEGRAL, S.L., as evidenced in the documents provided by you in your complaint filed with the Spanish Agency for Data Protection, so you must direct your request to exercise the right of access to the correct entity in order to satisfy your claims regarding data protection.”

ALTERNA has indicated in its response to the transfer that the request was not attended to in a timely manner due to a specific error, as it was directed to the wrong area and did not reach the department responsible for responding to requests for the exercise of rights. It attaches a copy of the email sent to

all departments reiterating the importance of forwarding all communications related to the exercise of rights to the appropriate department.

Analyzing the privacy policy of the defendant ALTERNA available on its website and detailed in the following section, it is evident that this document provides the following addresses to exercise rights: lopd@alternaonline.es, clientes@alternaonline.es, and dpo@alternaonline.es, different from the address used by the claimant.

On the other hand, ALTERNA indicates that it is not the entity to which the request for the exercise of the right should have been directed, since, as it explains, "the entities responsible for processing your data are TTB and XFERA."

However, in the copy of the invoice sent both by the claimant and by ALTERNA, the domain of alternaonline is specified:

"Customer Service

You can contact Customer Service through the following channels:

- Our 24-hour Help Center: www.alternaonline.es
- From an alterna mobile phone: 222
- From any other phone: 622 292 222
- Email: clientestelco@alternaonline.es

Legal Notice

This invoice is issued by The Telecom Boutique SLU with CIF B87522652 on behalf of billing and collection for XFERA MOVILES, S.A.U. with CIF A82528548 as the service provider of electronic communications, with the phone, email, and website for Customer Service 222, clientestelco@alternaonline.es, and www.alternaonline.es. This invoice serves as a payment request to the subscriber."

.-2.2-. Regarding evidence collected from the alternaonline website

On the homepage of alternaonline, it is announced:

"Alterna is now Butik

Provider of electricity and gas services, fiber and mobile, solar energy, and mobile renting."

The link "Visit our website" directs to the page <https://www.butik.es/>, where these services are offered.

Both the legal notice and the privacy policy of alternaonline indicate

Identification

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Title: Alterna Operador Integral, S.L. (hereinafter, "ALTERNA").

NIF: B87075982.

Registered Office: C/. José Echegaray, 1 - 28232 Las Rozas de Madrid (Madrid).

Public Registry: Registered in the Madrid Mercantile Registry, Volume 32415,

Page 138, Section 8, Sheet M-583.469, Registration 1.

Contact Phone: 900 056 018

Email: clientesenergia@alternaonline.es

DPO: dpo@alternaonline.es

The privacy policy specifies the companies in the group, which include, among others, ALTERNA, TTB, and BUTIK TELCO, S.L.

The Conditions page informs about the "General Conditions for the supply of energy and provision of home services."

1. Object of the contract

The object of this Contract is the acquisition by the Client from ALTERNA OPERADOR INTEGRAL S.L. (hereinafter, the Marketer) of electrical energy and/or gas through the facilities of the corresponding local Distributor, at the supply point and under the agreed conditions described in the Particular Conditions, in these

General Conditions, and in the mandatory regulations of the sector.”

The sample contract that can be downloaded from the alternaonline website https://alternaonline.es/content/dam/alterna-online/pdfs/ejemplo_contrato.pdf contains the forms for telecommunications contracts (in modular format depending on whether mobile, fiber, or both are to be contracted), electricity contracts, and gas contracts.

The electricity and gas contracts specify: “The service provider is Alterna Operador Integral, S.L., with registered office at Calle José Echegaray 1 - Edificio Dominion, 28232 Las Rozas de Madrid (Madrid) and CIF B-87075982, hereinafter Alterna.”

However, the telecommunications contract states:

“The contracted party (i.e., alterna)

These are our details, the company that provides you with the telecommunications service.

Name: The Telecom Boutique, S.L

CIF: B-87522652

Calle José Echegaray, 1 - Edif. Dominion. 28232 Las Rozas, Madrid”

The contract is signed with XFERA, which provides the mobile phone service, and with TTB, which will provide Billing and Invoice Collection services and First Level Customer Service.

“By signing this document, you subscribe to this Contract (which includes this form, the forms for the portability request of mobile numbers, the General Conditions for the Contracting of the Mobile Phone Service attached, and the General Conditions of the Contracted Rates, which the subscriber knows and accepts) with the Company XFERA

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MOBILE, S.A. (hereinafter XFERA), with registered office at Avenida de Bruselas, 38 – 28108 Alcobendas, Madrid, Spain, and CIF A-82528548, which provides you with the mobile phone service and other related services as an Electronic Communications Operator duly notified to the National Commission of Markets and Competition, with The Telecom Boutique, S.L.U. (hereinafter TTB), with registered office at C/ José Echegaray n. 1 of (28232) Las Rozas, Madrid and with CIF number B-87522652 as the Marketer of the aforementioned service and who will provide you with services such as Billing and Collection of invoices related to electronic communications services and First Level Customer Service. The Services include provisions and ancillary aspects to the mobile telephone service available to the public, fixed telephone service available to the public, and fixed broadband internet access service that may be provided through TTB. You, as the subscriber, XFERA, and TTB will be collectively referred to as the “Parties.”

(Note: the underlining has been added by the Agency)

It is noted that, although the alternaonline website identifies ALTERNA as the holder, the telecommunications contract is signed with XFERA and TTB.

.-3-. Regarding the information provided in response to the information requests

On September 8, 2023, a first information request is made to TTB requesting, among other points, a copy of the telecommunications contract signed by the claimant party subject to the complaint, a signed authorization by the claimant party for the domiciliation of the bank receipt in their account, copies of the contracts of TTB with XFERA and ANNA, and information about the relationship between the entities

involved in this investigation.

TTB responds to this information request with a registration date of October 4, 2023, providing along with its response letter an attached file containing the following documentation:

- Distribution and service provision contract signed between TTB and XFERA.
- Marketing contract for the electronic communications services marketed by TTB, signed with ANNA TELECOM.
- Contract signed between ANNA TELECOM and the claimant party.
- Brand usage assignment contract signed between ALTERNA and TTB.
- Number of times the claimant party opened the email sent by TTB.

On September 8, 2023, an information request is made to ANNA requesting, among other points, a copy or screenshot of all data held by their entity associated with the claimant party, the origin of such data,

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Procedures followed to fulfill the duty of information, copies of the contracts, basis of legitimacy for the delivery of the personal data of the claimant to TTB, etc.

Made available in the Unique Enabled Electronic Address (DEHÚ), the notification is recorded as expired due to lapse, as the established deadline for appearance has been exceeded, as of September 19, 2023.

The request for information is sent again dated March 14, 2024, whose notification is also expired due to lapse, as the established deadline for appearance has been exceeded, as of March 25, 2024.

This notification is reiterated via postal services dated March 25, 2024, which is recorded as returned due to unknown recipient on April 8, 2024.

On September 5, 2023, information is sought in the Monitoriza service at <https://www.axesor.es/> regarding ANNA, which is recorded as active and with a registered office at CALLE MAYOR, 68 - 46820 ANNA (VALENCIA).

On September 8, 2023, Google indicates that the establishment Anna Telecom located at that address is permanently closed. According to the Google Maps Street View service, Anna Telecom was located at that address as of June 2019 but that property was vacant as of July 2023.

On the other hand, as of September 9, 2024, the Monitoriza service indicates that ANNA has an Active status with unpaid debts and the Central Commercial Registry indicates that ANNA is still active.

On March 14, 2024, a request for information is made to XFERA requesting, among other points, a copy or screenshot of all data held by its entity associated with the claimant, the origin of such data, procedures followed to fulfill the duty of information, and a copy of the telecommunications contract signed by the claimant that is the subject of the complaint.

After requesting an extension of the deadline, XFERA responds to this request for information with a registration date of April 17, 2024, providing the following documentation attached to its response:

- Screenshot of the personal data associated with the claimant.
- Contract signed between XFERA and TTB.
- Contract signed by the interested party regarding the line ***TELÉFONO.1 valid as of 03/31/2022.

On September 9, 2024, a second request for information is made to TTB requesting, among other points, the procedures followed by TTB to fulfill the duty of information with the aim of informing the claimant that TTB is responsible for the processing of their personal data and what treatments are going to be carried out and evidence of compliance.

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TTB responds to this request for information with a registration date of October 1, 2024, providing the following documents attached to its response:

- Record of Processing Activities
- Procedure for the Duty of Information, Obtaining and Revocation of Consent.
- Particular Conditions for Contracting Customer Service, SIM Card Delivery, Collection Management, and Billing of TTB

From the information gathered during the investigation, the following has been revealed:

.-3.1-. Regarding TTB's responses

In its response to the first request for information: TTB states that "ALTERNA and TTB are two independent companies with totally differentiated corporate purposes, although they belong to the business group GLOBAL DOMINION ACCESS S.A, just as the company BUTIK TELCO S.L. does." When requested for the contracts between the investigated entities and the claimant, TTB sends the following contracts attached to its response to the first request for information: Distribution and service provision contract signed between TTB and XFERA, Marketing contract for the electronic communications services marketed by TTB, signed with ANNA TELECOM, Contract signed between ANNA TELECOM and the claimant, and Brand usage assignment contract signed between ALTERNA and TTB.

.-3.1.1-. Contract signed between XFERA and TTB

In its response to the first request for information, TTB indicates that it signed a "distribution and service provision contract with XFERA" [...] "Under this contract, TTB is legitimized to act as a marketer and in charge of the sale of the services provided by XFERA - thus occupying the role of data processor - also assuming the services of collection, billing, and customer service - acting as the data controller."

The distribution and service provision contract signed between XFERA and TTB includes on page 111 the data processing agreement, in which XFERA acts as the data controller and TTB as the data processor.

From this contract, the following information is extracted, among others:

"Category of personal data:

- private contact data and identification data
- contractual data
- reliability and financial data

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Treatment to be carried out:

- Collection
- Registration
- Modification
- Conservation
- Consultation"

The processor is obliged to:

"[.]"

- carry out the processing of personal data in accordance with the instructions provided at any given time by the data controller [...]

- Not perform any other processing on personal data, nor apply or use the data for a purpose other than the provision of the service subject to the service contract, nor use it for its own purposes or those of third parties.

Regarding subcontracting, it is specified on page 120 that the Controller authorizes the processor to subcontract with the companies Flip Energía S.L., THE PHONE HOUSE SPAIN, S.L.U. and the franchise network of THE PHONE HOUSE SPAIN, S.L.U. For other subcontracting, the processor

must communicate it in writing to the controller, who will have a period of 30 days to oppose. In the commercial report of TTB obtained through the Monitoriza service at <https://www.axesor.es/> dated September 7, 2023, it is reflected that TTB belongs to the economic group with the global parent company: LORCA HOLDCO LIMITED, and that TTB maintains financial relations with THE PHONE HOUSE SPAIN S.L.

.-3.1.2-. Contract signed between TTB and ANNA

TTB states in its response to the first information request that “it subscribes agreements with different marketing entities that have a recognized brand in the sector, in certain areas of the country, with the aim that these entities provide the Company with certain services related to customer acquisition, collection, billing, and customer service, acting therefore as processors of TTB regarding collection, billing, and customer service.”

TTB provides the document signed between TTB and ANNA, “contract for the marketing of electronic communications services marketed by TTB, as well as a data processing agreement, dated June 3, 2021. At this point, it is worth noting that there was a specific error in completing the heading of this document, incorporating ANNA TELECOM as the data controller and TTB as the processor, instead of the other way around, a circumstance that clearly does not align with the agreed services.”

It is verified that, as TTB has explained, the data access contract signed between TTB and ANNA indicates that TTB is listed as the Processor and ANNA as the Data Controller “instead of the other way around.”

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“The Data Processor has committed to provide the Data Controller with the agreed resale services of electronic communications as stipulated in the corresponding contracts signed for this purpose.

[...]

1.2 The provision of the contracted Services involves the following processing by the Data Processor: Collection, registration, conservation of personal data.

1.3 In the event that the provision of Services involves the collection of personal data, the Data Processor will fulfill the duty of information in accordance with the instructions provided by the Data Controller.”

Regarding the marketing contract for the electronic communications services marketed by TTB provided, ANNA is listed as the MARKETER, “interested in the sub-distribution in the Territory of the services marketed by TTB under its own brand (white label modality), [...] all without the MARKETER being an electronic communications operator [...] but rather the services subject to this contract will always be services provided by the HOST operator [(XFERA)] and marketed by TTB under the condition of Authorized Aggregator of the HOST operator in the white label modality.”

[...]

“the MARKETER must:

a. Inform end customers that the provider of the Services is in any case the HOST Operator through TTB as Aggregator, as well as that it provides commercial support, first-level customer service, and billing and collection management on behalf of TTB. In particular, the MARKETER will not present the services as its own at any time.

[...]

16. Termination of the Contract

In any case of termination or resolution of the contract, whatever the cause of such termination or resolution, the End Customers will continue to be customers of the HOST operator through TTB as Aggregator, who will assume the total direct management of the end customers who, until that moment, had been attended to by the MARKETER. For this purpose, TTB will notify the MARKETER of this circumstance, and will also inform those customers of the date from which TTB will directly provide all the services that until that moment were marketed with the intermediation of the

MARKETER.”

TTB continues explaining in its response to the first request: “TTB has taken legal action against said company as a result of continuous contractual breaches,” and substantiates this by sending screenshots of the registration before the Court of First Instance and Instruction of Xátiva.

TTB further states that it has been “aware of the serious contractual breach committed by ANNA TELECOM - in addition to those others that are being discussed in court - as it has been verified how this company has carried out actions that result in absolute disobedience of

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the agreed obligations. In this regard, TTB has been able to verify that not only was the contract model provided by TTB not being used, but also that the company in question was using a document that has nothing to do with the one provided by the Company, identifying itself as a telecommunications operator with its own network, without mentioning either XFERA or TTB in the contract.

.-3.1.3-. Contract signed between ANNA and the claiming party

TTB submits as the contract signed between ANNA and the claiming party the document, which is actually a portability request signed by the claiming party, but in which neither the date of signature nor the date of the contract is specified.

The document shows that ANNA identifies itself as “a Mobile operator offering mobile phone and internet services available to the public (hereinafter the “Service”) in collaboration with the DISTRIBUTOR. Detailed information about the Service can be found on the DISTRIBUTOR's website.” However, throughout the document, it does not specify which entity is the DISTRIBUTOR.

Regarding the above, TTB states in its response to the first information request:

.- that in the contract signed between ANNA and the claiming party, ANNA identifies itself as “responsible for the provision of the service and the DISTRIBUTOR will be responsible for Customer Service, billing, and collection for the Service”

.- regarding the previous paragraph, TTB states: “circumstances that are completely contradictory to what is established in the contract between the parties, since in this way it is configured as a totally independent data controller, which implies that the processing of personal data that has been carried out has been unlawful by this entity, which undoubtedly makes it, under the provisions of Article 28.10 of the GDPR, a direct controller and therefore, the entity that must assume any type of administrative consequence in the event that it is concluded that there has been any type of infringement regarding the personal data of A.A.A..

TTB in its response to the first information request provides a screenshot of an unsigned contract that is similar to the example of the contract downloaded from the alternaonline website, but indicates ANNA TELECOM instead of alterna. TTB qualifies it as “a completely fraudulent attitude on the part of ANNA, detected by TTB at the moment when A.A.A. made its claim before the SETSI”

[...]

“it is impossible to provide any type of contract signed after the termination of the commercial relationship between TTB and ANNA TELECOM, a fact that supports the communication made by TTB to its clients regarding the circumstances that led to ANNA TELECOM ceasing to provide services.

[...]

“if ANNA TELECOM had complied with the obligations assumed through the contract binding the parties, A.A.A. would be fully aware that it maintained a relationship with XFERA and TTB as data controllers, while ANNA TELECOM simply provided services to the latter company,

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as the data processor, without having the authority to process the data for its own purposes.”

.-3.1.4-. Resolution of the contract signed between ANNA and TTB and use of the commercial brand ALTERNA.

TTB continues to explain in its response to the first request:

“TTB, in light of the powers acquired, resolved, on April 5, 2022, the contract signed with ANNA TELECOM, following incessant contractual breaches. Consequently, TTB began to use the commercial name of ALTERNA, but without the latter assuming the role of data processor, as this company is not involved in the provision of the services being carried out, but has solely and exclusively granted TTB the use of its brand.”

TTB provides a copy of the trademark licensing agreement signed between ALTERNA and TTB, dated October 1, 2019, which states:

I.

That TTB is a company dedicated to the provision and marketing of telecommunications services.

II.

That TTB has a distribution contract with Xfera Móviles, S.A. (MasMóvil).

III.

That both parties are interested in the transfer of the ALTERNA brand for the promotion and sale of services by TTB.

According to its statement, TTB began to use the commercial name of ALTERNA after resolving the contract signed with ANNA in 2022. However, the trademark licensing agreement was signed in 2019.

.-3.1.5-. Regarding the procedures followed to comply with the duty of information

When requested about the procedures followed by TTB to comply with the duty of information in order to inform the claimant that TTB is responsible for the processing of their personal data and what treatments will be carried out, as well as the evidence of compliance, TTB submits its “Procedure for the Duty of Information, Obtaining and Revocation of Consent” along with its response to the second request for information in which “the guidelines to be followed to inform the interested parties according to the means used for the collection or registration of data, as well as the moment in which it must be provided, are established.”

It also attaches the “Particular Conditions for Contracting Customer Service, SIM Card Delivery, Collection Management, and Billing of TTB,” “where the terms and conditions that apply to the services provided by TTB to end customers are collected, and, more specifically, the information related to the processing of personal data to be carried out by TTB, as well as the rights that assist the potential customer and/or client.”

At this point, it should be noted that due to the negligent actions of ANNA, the Particular Conditions, just like the Marketing Contract for the Services

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(hereinafter, the “Marketing Contract”) were never provided by ANNA to the claimant, thus breaching the terms and conditions agreed with TTB.”

It has been verified that the document is personalized to the claimant but lacks a date or signature.

The document specifies the following information:

“2.1. Customer Service and Complaints:

ALTERNA will offer Customer Service according to the following:

- Hours: Monday to Friday from 09:00 to 21:00 | Saturdays, Sundays, and holidays from 10:00 to 19:00
- Phone: ***PHONE.1
- Website: <https://alternaonline.es/>
- Postal address: José Echegaray nº 1 28232 Las Rozas de Madrid

[...]

The contracted party (“ALTERNA”)

These are our details, the company that markets the telecommunications service for you.

Name: THE TELECOM BOUTIQUE S.L.

Address: C/ Jose Echegaray, 1. 28232 Las Rozas de Madrid (Madrid)

NIF: B87522652.

Contact phone: 910 790 247

Email: clientes@ALTERNA.es

.-3.1.6-. Regarding the instructions provided to ANNA by TTB to comply with the duty of information. When requested for the instructions provided to ANNA by TTB to comply with the duty of information, TTB, in its response to the second request for information, refers to the data processing agreement signed between TTB and ANNA, which states:

.- ANNA is obliged to comply with the applicable regulations regarding data protection.

.- End customers must always sign the contract model provided by TTB to the MARKETER, and this must always deliver the original signed by the End Customer to TTB.

“ANNA, as the data processor, expressly undertook to process the data in accordance with the instructions of the data controller.”

[...]

“ANNA blatantly disobeyed the obligations assumed and previously mentioned, incurring in particularly serious contractual breaches that have led this party to exercise the corresponding actions in court:

.- On November 2, 2023, a complaint was filed against ANNA, with the procedure being processed before the Court of First Instance and Instruction of Majadahonda No. 02, which is currently ongoing

[...]

.- The contractual breaches of ANNA have also been claimed by TTB in civil proceedings [...]:

- Monitoring procedure 714/2023 in the Court of First Instance and Instruction No. 3 of Xàtiva.

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- Monitoring procedure 747/2023-S in the Court of First Instance and Instruction No. 2 of Xàtiva.

- Monitoring procedure 0001429/2023 in the Court of First Instance No. 3 of Arrecife.

.-3.1.7-. Regarding the communication to the claimant by TTB.

TTB, in its response to the second request for information, clarifies that “there were not several email campaigns notifying A.A.A. of this circumstance, but rather this action was executed through a single communication” dated May 5, 2022.

As TTB indicates, the campaign has the subject: “BLOCKING DUE TO NON-PAYMENT OF TELECOMMUNICATIONS SERVICE” and states:

“A.A.A., we remind you that your services since April are with alterna and we do not have your IBAN. Since April, the telecommunications services you had contracted with Interconectamos have been managed by alterna. This is due to Interconectamos having breached its contractual commitments. From that date, you must make your payments to alterna, which is the company you have become a client of. In the event that Interconectamos has issued you an invoice for the month of April, we recommend that you do not make the payment.”

TTB provides the document “which shows that A.A.A. opened the email sent by TTB – using the trademark ALTERNA – more than EIGHTY times, a fact that is undoubtedly striking, considering the notoriety of the information transmitted to A.A.A. and the absence of identical or similar behaviors by other TTB clients, to date. This document was submitted to this AEPD as a consequence of the appeal for reconsideration filed by A.A.A.”

.-3.1.8-. Regarding the Register of Personal Data Processing Activities

A copy of the Register of Personal Data Processing Activities (hereinafter, RAT) was requested, concerning the personal data processing activities carried out in the context of managing communications to TTB clients; this entity sends said register in the document.

The RAT specifies two processing activities, in which TTB has the role of data controller, and indicates compliance with the contractual relationship as the basis for legitimizing both and the origin of the

CRM data - Customer Data (Web Dealer):

- .- Billing and collection from clients, whose purpose is: Management of client billing.
- .- Customer service, whose purpose is: Customer support and assistance. Monitoring of the contractual relationship and service provision.

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.-3.1.9-. Regarding the disparity between the evidence provided by the claimant and that provided by TTB

The claimant presents in their appeal for reconsideration an email from info@alternaonline.es dated May 5, 2022, with the subject “Your rate HAS IMPROVED!”, in which it is informed:

“A.A.A., since April the services you have contracted with Interconectamos have become part of alterna.

Your current telecommunications operator Interconectamos has ceased to provide you service since April 1, 2022. From alterna, as the owner of the telecommunications network you are currently using, we will continue to provide you with service with absolute normality: you will not notice any interruption nor will you have to change your SIM card.”

TTB states “that the content of this (communication) does not fully coincide with the email that was sent to the clients. Undoubtedly, such circumstances are being investigated by TTB, which will take any legal measures it deems appropriate against those responsible for the deceitful manipulation of a document for submission to the authority.”

.-3.2-. Regarding the response from XFERA

.-3.2.1-. Regarding the origin of the personal data of the claimant

XFERA informs in its response that:

“The origin of the personal data is the interested party themselves, through, in this case, our data processor TTB or its authorized subcontractors.

The basis for legitimizing the processing of this data is provided in Article 6.1. b) necessary processing for the execution of a contract in which the interested party is a party or for the application at their request of pre-contractual measures; In this case, my represented party is the provider of the telecommunications services contracted by the interested party.”

.-3.2.2-. Regarding the procedures followed to fulfill the duty of information

XFERA states in its response that TTB is obliged to provide the General and specific Conditions of XFERA and to be in a position to prove this circumstance. It is confirmed that this text appears in the contract signed between XFERA and TTB, provided by both entities and consistent with each other:

“d.

General and specific Conditions. Ensure in all cases that the final customer knows and accepts the general and specific conditions of XFERA that are listed as Annex 2. In particular, TTB must retain sufficient proof of the acceptance of these general and specific conditions by the final customer.”

XFERA continues to explain that:

“In the General Conditions of my represented party, specifically in its clause 7, it informs about the conditions under which my represented party processes the data of its clients in the terms provided in Article 13 of the GDPR.

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Likewise, TTB is also entrusted with the functions of document management for end clients, in accordance with the fifth clause of the distribution and service provision contract signed between my

represented party and TTB.

.-3.2.3-. Regarding other considerations

Concerning the telecommunications contract signed by the claimant party, associated with the line ***TELÉFONO.1 in effect on 31/03/2022, XFERA submits as a document the same portability request signed by the claimant party that TTB provided as a document.

XFERA also states that "We are aware that The Telecom Boutique, S.L.U. has initiated a criminal process against INTERCONECTAMOS TELECOM, S.L. and the interested party, A.A.A., in relation to the facts subject to this procedure for the crime of falsifications, within which preliminary proceedings have been initiated."

When requested for a copy of the communication from TTB to XFERA informing about the sub-distribution contract / contract for the marketing of electronic communications services marketed by TTB signed by ANNA, XFERA states that they have no record of this communication.

FUNDAMENTALS OF LAW

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 of the GDPR, under the heading "Definitions," provides the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment or combination, restriction, erasure, or destruction."

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law."

8) "processor" or "processor" is the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller."

In summary, the data controller is the natural or legal person who decides on the processing of personal data, determining the purposes and means of such processing.

By virtue of the principle of proactive responsibility, the data controller must implement technical and organizational measures to comply with and be able to demonstrate compliance with the regulations on personal data protection, taking into account the risk involved in the processing of personal data.

On the other hand, the processor is the natural or legal person who provides a service to the controller that involves the processing of personal data on behalf of the controller.

In this sense, the controller is the one who decides the "why" and "how" regarding personal data, while the processor is the one who carries out the processing of personal data on behalf of the controller.

In this case, the participation and responsibility of each of the entities involved in the processing of the claimant's personal data must be analyzed:

- ALTERNA is a company dedicated to the sale and marketing of any type of energy to which the claimant party requested access to their personal data.
- XFERA is the mobile phone service with which the claimant party signed the contract.

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□

THE TELECOM BOUTIQUE is the authorized marketer of XFERA for the aforementioned mobile phone service and provides services such as billing and collection of invoices related to electronic communications services and first-level Customer Service.

□

ANNA TELECOM: INTERCONECTAMOS TELECOM S.L. acts on behalf of TTB for billing, collection, and commercial management, including first-level customer service.

The company TTB, which operates under the assignment of the use of the trademark ALTERNA and declares this, is the data processor, with XFERA being the company responsible for processing the personal data of the claiming party.

“TTB, exercising the powers acquired, resolved on April 5, 2022, to terminate the contract signed with ANNA TELECOM, due to incessant contractual breaches. Consequently, TTB began to use the commercial name ALTERNA, but without the latter assuming the role of data processor, as this company is not involved in the provision of the services being carried out, but has solely and exclusively assigned the use of its brand to TTB.”

The role of the data processor in the GDPR is defined in Article 28, which establishes the requirements that must be met regarding data protection:

1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.
2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thus giving the controller the opportunity to object to such changes.
3. Processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:
 - a) shall process the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;

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- b) will ensure that the individuals authorized to process personal data have committed to respecting confidentiality or are subject to a statutory obligation of confidentiality;
- c) will take all necessary measures in accordance with Article 32;
- d) will respect the conditions set out in paragraphs 2 and 4 for engaging another processor;

e) will assist the controller, taking into account the nature of the processing, through appropriate technical and organizational measures, wherever possible, so that the controller can comply with its obligation to respond to requests concerning the exercise of the rights of the data subjects established in Chapter III;

f) will help the controller ensure compliance with the obligations set out in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the choice of the controller, will delete or return all personal data once the provision of processing services has ended, and will delete existing copies unless the retention of personal data is required by Union or Member State law;

h) will make available to the controller all necessary information to demonstrate compliance with the obligations set out in this article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of point h) of the first paragraph, the processor will immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or the Member States.

4. When a processor engages another processor to carry out certain processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 will be imposed on this other processor, through a contract or other legal act established in accordance with Union or Member State law, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures so that the processing is in compliance with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor will remain fully responsible to the controller for compliance with the obligations of the other processor. (...) In this case, there is a data access contract for processing signed between TTB and ANNA, which states verbatim that:

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"The Data Processor has committed to providing the Data Controller with the agreed services for the resale of electronic communications as outlined in the corresponding contracts signed for this purpose. [...]

1.2 The provision of the contracted Services involves the Data Processor carrying out the following processing activities: Collection, recording, and storage of personal data.

1.3 In the event that the provision of Services involves the collection of personal data, the Data Processor shall fulfill the duty of information in accordance with the instructions provided by the Data Controller."

TTB provides a copy of the brand usage transfer contract signed between ALTERNA and TTB, dated October 1, 2019, which states:

I.

That TTB is a company dedicated to the provision and marketing of telecommunications services.

II.

That TTB has a distribution contract with Xfera Móviles, S.A. (MasMóvil).

III.

That both parties are interested in the transfer of the ALTERNA brand for the promotion and sale of services by TTB.

Consequently, TTB began to use the commercial name of ALTERNA on that date.

III

Legality of Processing

Article 6 of the GDPR establishes that the processing of personal data obtained from users is only lawful if at least one of the conditions set out in its first paragraph is met, among which is, in paragraph a): "that the data subject has given consent to the processing of their personal data for one or more

specific purposes (...)"

Regarding the processing of data based on the consent of the data subject, Article 7 of the GDPR states that the data controller must be able to demonstrate that the data subject consented to the processing of their personal data. If consent is given in the context of a written declaration that also refers to other matters, it must be ensured that the request for consent is clearly distinguishable from other matters and is presented in an intelligible manner, easily accessible, and using clear and simple language. Additionally, the data subject must be provided with additional information, including, among others, the categories of data to be processed, the purposes for which consent is requested, and the right to withdraw consent at any time.

Regarding the manner of obtaining the consent of the data subject for the processing in question, Recital 32 of the GDPR states that consent "must be given by a clear affirmative act that reflects the data subject's free, specific, informed, and unambiguous indication of their wishes to accept the processing of personal data concerning them" and that "silence, pre-ticked boxes, or inactivity should not constitute consent." Furthermore, it is required that consent is

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grants "for all processing activities carried out with the same or the same purposes. When the processing has multiple purposes, consent must be given for all of them." Finally, it establishes that, "if the consent of the data subject is to be given as a result of a request made by electronic means, the request must be clear, concise, and not unnecessarily disrupt the use of the service for which it is provided."

For its part, Article 12.1 of the aforementioned GDPR establishes the requirements that the information provided by the data controller to the data subjects when requesting their consent must meet, as follows: "1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means (...)"

Articles 13 and 14 of the GDPR detail the information that must be provided to the data subject when the data is collected directly from them (Art. 13), or through other means (Art. 14). In any case, the obligation to inform the data subjects about the circumstances related to the processing of their data falls on the data controller: a) If the data is obtained directly from the data subject, the information must be made available at the time the data is requested, prior to collection or registration; and b) if it is not obtained from the data subject, they must be informed within one month from the date the personal data was obtained, or before or in the first communication with the data subject, or before the data (if applicable) has been communicated to other recipients.

In this case, it is evident that TTB has processed the data of the claimant.

TTB is the authorized marketer of XFERA for the aforementioned mobile phone service and provides services such as billing and collection of invoices related to electronic communications services and first-level customer service.

It is recorded in the file that, on September 9, 2019, it signed a distribution and service provision contract with XFERA MOVILES S.A.U (hereinafter, "XFERA"), which includes the necessary clauses to comply with Article 28 of the GDPR.

By virtue of this contract, TTB is authorized to act as a marketer and manager of the sale of the services provided by XFERA, also assuming the services of collection, billing, and customer service. It is recorded in the file a trademark licensing agreement signed between ALTERNA and TTB, dated October 1, 2019, which states:

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I.

That TTB is a company dedicated to the provision and marketing of telecommunications services.

II.

That TTB has a distribution contract with Xfera Móviles, S.A. (MasMóvil).

III.

That both parties are interested in the licensing of the ALTERNA brand for the promotion and sale of services by TTB.

Consequently, at the time of the events that occurred, TTB was acting using the commercial name of ALTERNA.

However, it is important to note that the telephone service is provided to the claimant by XFERA, and it is XFERA that has contracted with THE TELECOM BOUTIQUE, S.L.U for the billing and collection services related to electronic communications services.

For all these reasons, it is considered that TTB has processed the personal data of the claimant legitimately, under the contract for the provision of billing and collection services signed between XFERA and TTB.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute the lack of legitimacy according to what has been indicated, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to THE TELECOM BOUTIQUE, S.L. and XFERA MÓVILES, S.A.U. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court.

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in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due

to the vacancy of the position of Presidency and Deputy
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